

1 HOUSE BILL NO. 330

2 INTRODUCED BY J. HINKLE, T. RUNNING WOLF

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4 A BILL FOR AN ACT ENTITLED: "AN ACT REVISING LAWS RELATED TO AUCTION AND LOTTERY
5 LICENSES; CREATING AUCTION OR LOTTERY LICENSES FOR ANTELOPE AND SWANS; DESIGNATING
6 PROCEEDS FROM LICENSE SALES; AND PROVIDING RULEMAKING AUTHORITY.

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8 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

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10 NEW SECTION. **Section 1. Auction or lottery of antelope license.** (1) The commission may issue
11 one either sex antelope license each year through a competitive auction or lottery. The commission shall
12 promulgate rules for the use of the license and conduct of the auction or lottery. A wildlife conservation
13 organization that focuses on the conservation of antelope may be authorized to conduct the license auction or
14 lottery, in which case the authorized organization may retain up to 10% of the proceeds of the sale to cover
15 reasonable auction or lottery expenses.

16 (2) All proceeds remaining from the auction or lottery, whether conducted by the commission or as
17 otherwise authorized by the commission, must be used by the department for the substantial benefit of
18 antelope. The proceeds from the auction or lottery must be used in addition to any other funds that the
19 department uses for the management of antelope.

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21 NEW SECTION. **Section 2. Auction or lottery of swan license.** (1) The commission may issue one
22 swan license each year through a competitive auction or lottery. The commission shall promulgate rules for the
23 use of the license and conduct of the auction or lottery. A wildlife conservation organization that focuses on the
24 conservation of migratory game birds may be authorized to conduct the license auction or lottery, in which case
25 the authorized organization may retain up to 10% of the proceeds of the sale to cover reasonable auction or
26 lottery expenses.

27 (2) All proceeds remaining from the auction or lottery, whether conducted by the commission or as
28 otherwise authorized by the commission, must be used by the department for the substantial benefit of

1 migratory game birds. The proceeds from the auction or lottery must be used in addition to any other funds that
2 the department uses for the management of migratory game birds.

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4 NEW SECTION. **Section 3. Codification instruction.** [Sections 1 and 2] are intended to be codified
5 as an integral part of Title 87, chapter 2, part 8, and the provisions of Title 87, chapter 2, part 8, apply to
6 [sections 1 and 2].

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